

ACTION NO. _____

**IN THE 7TH JUDICIAL CIRCUIT
OF THE STATE OF CHESAPEAKE
IN AND FOR HARRISON COUNTY**

PLAINTIFF_NAME,
Plaintiff,

v.

DEFENDANT_NAME,
Defendant.

NOTICE OF APPEAL RIGHTS

NOW COMES the Defendant, by and through their Attorney, **DEFENDANTS_ATTORNEY**, and does subscribe to this Notice of Appeal Rights regarding a judgment and sentence entered on a **NEGOTIATED PLEA OF GUILTY**, at the time of imposing sentence the Court has advised the Defendant in open court that he has the following rights on appeal:

- (1) That the Defendant has a right to appeal;
- (2) That prior to taking an appeal the Defendant **MUST** file in the County Court, within **FIVE DAYS** of the date on which sentence is imposed, a written motion asking to have the judgment vacated and for leave to withdraw the plea of guilty, setting forth the grounds for the Motion under Ches. R. Crim. P. Rule 5.2;
- (3) That if the Motion is allowed, the plea of guilty, sentence and judgment will be vacated and a trial date will be set on the charges to which the plea of guilty was made;
- (4) That upon the request of the People any charges that may have been dismissed as a part of a plea agreement will be reinstated and will also be set for trial;
- (5) That if the Defendant at the time of the Defendant's plea of guilty and sentence, counsel will be appointed to assist the Defendant with the preparation of the motions; and
- (6) That in any appeal taken from the Judgment on the plea of guilty any issue or claim of error not raised in the motion to vacate the judgment and to withdraw the plea of guilty shall be deemed waived.

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For the purposes of this form, a negotiated plea is one in which the People have bound itself to recommend a specific sentence, or a specific range of sentence, or where the prosecution has made concessions relating to the sentence to be imposed and not merely to the charge or charges then pending.

Date: **DATE**

NAME
Defendant